



दि ओरिएण्टल इन्श्योरेंस कम्पनी लिमिटेड
THE ORIENTAL INSURANCE COMPANY LIMITED
पंजीकृत कार्यालय :- ओरिएण्टसल हाऊस, पो.बॉ. नं० 037, ए-25/27 आसफ अली रोड, नई दिल्ली
Regd. Office: Oriental House, A-25/27, Asaf Ali Road, New Delhi-110002
CIN No.U66010DL1947GOI007158

POLICY FOR KISSAN AGRICULTURAL PUMPSET INSURANCE

Operative clause

Whereas the insured by a proposal and declaration, which shall be the basis of this contract and is deemed to be incorporated herein has applied for the insurance hereunder contained and has paid premium as consideration for such insurance to The Oriental Insurance Company Ltd. (hereinafter called the "company"). Now this policy witnesses that subject to terms and conditions, provisions and exclusions contained herein or agricultural pump set described in the schedule herein (including starters and switches), whilst at the premises as mentioned in the schedule herein be lost, damaged or destroyed by :

1. Fire and/or lightning.
2. Theft/burglary due to violent forcible entry and provided the pumpset is kept in a locked enclosure. As far as the submersible pumpsets are concerned, the normal lock and key clause is waived for the theft/Burglary cover mentioned herein since the pumpsets are installed deep in the borewell under the earth.
3. Mechanical/Electrical breakdown.
4. Riot, Strike, Malicious Damage &
5. Terrorism

Note : Flood cover is an optional cover for which an additional premium has to be paid by the insured. if he/she desires the flood cover.

During the period of insurance stated in the said schedule or during any subsequent period in respect of which the insured shall pay and company shall accept the premium required for renewal of this policy, the company will indemnify the insured in the manner and to the extent described herein below, but after having satisfied by production of necessary bills, receipts and other documents, that the requisite repairs have been or replacements have been effected taken place as the case may be.

This Kisan Agricultural pumpset insurance policy is applicable to centrifugal pumpsets (Electrical and Diesel) and submersible pumpsets upto 25 H.P. used for Agricultural purposes only.

PROVISIONS

1. Sum Insured

It is a requirement of this insurance that the sum insured shall be equal to the market value of the pumpset at the time of accepting the proposal and therefore if there is under insurance, in the event of a loss, the insured has to bear the proportionate amount of loss. To avoid under insurance, Sum Insured must include provision for freight, packaging, duties if any and each item should be shown in the proposal and the schedule separately with separate sum insured.

2. Basis of Indemnity

- a) Company will indemnify the insured at its option by payment or reinstatement or repair.
- b) The liability of the company for any one item will not exceed the sum insured set against such item in the schedule.
- c) In case where damage to an insured item can be repaired the company will pay expenses necessary incurred to restore the damaged machine to its former state of serviceability.
- d) If the cost of repairs exceeds the actual value of the pumping set insured immediately before occurrence of the damage, the settlement shall be made on the basis provided for in (e) below
- e) In case of total loss of an item, the company will pay the actual value of the item immediately before the occurrence of the loss, such actual value to be calculated by deducting proper depreciation from the replacement value of the item.

In case of submersible pumpsets, for total loss where the pumps cannot be recovered only 50% of , the assessed loss will be paid.

In case of total loss of pumpset, claims will be paid subject to depreciation of 10% per year. Maximum depreciation would be 75% of erected value of pump set with motor.

- f) Theft and burglary cover will be available only if the pump set is lodged in locked enclosure and the liability will arise only if there is forcible and violent entry. However this lock and key clause is waived for submersible pumpsets since they are kept deep in the bore well under the earth.

The Company will make payment only after being satisfied by production of the necessary bills and documents that the repairs have been effected or replacements have taken place as the case may be.

- g) "Rewinding Charges" shall be payable after deducting for salvage value of burnt copper and excess applicable and shall be limited to 15% of the Sum Insured or actual whichever is less. Such rewinding charges are inclusive of the cost of material (copper etc.) and the labour charges.
- h) Excess :- for each and every machinery breakdown claim there shall be an excess of 1% of sum insured subject to a minimum of Rs. 100/-.
- i) Maximum liability
 - (i) Annual Policy: Irrespective of number of claims reported under the policy, the maximum liability will not exceed the sum insured under the policy.

(ii) Long Term Policy: As regards the long term policy, irrespective of number of claims reported the maximum liability will be sum insured per year. If there is no claim in a year, it will not have any cumulative effect. In other words, the total liability under long term policy will not be the sum insured multiplied by number of years for which the policy is taken.

GENERAL EXCEPTIONS

The Company shall not be liable in respect of:

1. Loss damage and/or liability directly or indirectly caused by or arising from or in consequence of
 - (a) war and allied perils.
 - (b) Ionizing, radiations, radioactivity or nuclear weapons or materials.
2. Normal wear and tear, gradual deterioration due to atmospheric conditions or otherwise.
3. Loss damage and/or liability caused by or arising out of the willful gross negligence of the insured or his representative.
4. Loss damage and/or liability due to faults existing at the time of commencement of this insurance and known to the Insured or his responsible representatives regardless of whether such faults or defects were known to the Company or not.
5. An excess of 1% of Sum Insured subject to a minimum of Rs. 100/- is to be borne by the Insured out of each and every claim.
6. Loss or damage for which the manufacturer or supplier of the property is responsible either by law or under contract.
7. The cost of dismantling, the cost of transport to the repair shop and back to the Insured's premises and the cost of re-erection arising out of any damage to the pumping-set.
8. Loss or damage caused by Flood water unless specifically insured against (may be covered subject to payment of additional premium, in non-flood prone areas only).

In any action, suit or other proceeding where the Company alleges that by reasons of the provisions of the Exception above and loss, destruction, damage or liability is not covered by this insurance the burden of proving that such loss, destruction, damage or liability is covered shall be upon the Insured.

CONDITIONS

1.
 - a. The company shall at all reasonable times have the right to inspect and examine any property insured hereunder.
 - b. No material alteration shall be made or admitted by the insured whereby the risk or damage is increased, unless the continuance of insurance be confirmed by memorandum signed by or on behalf of the company.
2. In the event of any occurrence which might give rise to a claim under this policy, the insured shall;
 - a. Immediately notify the company by telephone or telegram as well as in writing giving an indication as to the nature and extent of loss or damage.
 - b. Take all reasonable steps within his power to minimize the extent of loss or damage or liability.
 - c. Preserve damaged or defective parts and make them available for Inspection by an official surveyor of the company.
 - d. Furnish all such information and documentary evidence as the company may require.

The company shall not be liable for any loss or damage of which no notice and completed claim form have been received by the company within 14 days of its occurrence.

The liability of the company under the policy in respect of any item of property sustaining damage, for which indemnity is being provided, shall cease if the said item is kept in operation without being repaired to the satisfaction of the company.

3. If the proposal or declaration of the insured is not true in any material respect or if any claim made by fraudulent or substantially exaggerated or if any false declaration or statement be made in support thereof, this policy shall be void and the company shall not be liable to make payment hereunder.

In the event of company disclaiming liability in respect of any claim, if an action or suit be not commenced within three months after such disclaimer all benefits under this policy in respect of such claim shall be forfeited.

If at the time any claim arises under this policy if there is any other insurance covering the same loss or damage or liability, the company shall not be liable to pay or contribute more than its rateable proportion of such loss damage or liability.

4. The insurance granted by this policy shall cease to attach to any items described in the schedule the interest in which shall pass from the insured otherwise than by will or operation of law unless the consent of the company for the continuance shall be obtained and signified by an endorsement thereon.
5. The insured shall at the expense of the company do and concur in doing and permit to be done all such acts and things as may be necessary or required by the company in enforcing any right or remedies or of obtaining relief or indemnity from parties (other than those insured under this policy) to which the company shall be or would become entitled or subrogated upon their paying for or making good loss or damage under this policy, whether such acts and things shall be or become necessary or required before or after the insured's indemnification by the company.
6. The due observance and fulfillment of the terms, provisions and conditions of and endorsement of policy in so far as they related to anything to be done or complied with by the insured and the truth of the statements and answers in the said proposal shall be conditions precedent to any liability of the company to make any payments under this policy.

7. **Cancellation Clause:**

Retail customers can cancel policies anytime, reasons not required. Insurers can cancel policies only on grounds of established fraud, with proportionate premiums refunded for the unexpired period, in case of no-claim.

Long Term policy – Full refund for balance years, proportionate for the affected year.

8. **Theft and Burglary Conditions:**

It is hereby declared and agreed that if the property described in the Schedule of the within mentioned policy shall be lost by Theft following upon an actual forcible and violent entry of the premises by the persons or persons committing such theft then the company will pay or make good

to the insured such loss to the extent of the intrinsic value of the property so lost provided that the liability of the company shall in no case exceed in respect of such item the sum expressed in the schedule hereto to be insured thereon. It is hereby declared and agreed that the theft/ burglary of either the pump or the motor or both is held covered under the policy.

9. a. This policy does not cover the following :

- i) Loss or damage where any inmate or member of the Insured's household or of his Business staff or any other person lawfully in the premises is concerned in the actual theft of or damage has been expedited or in any way assisted or brought about by any such person or persons.
- ii) Loss by theft of individual parts of the pumping set.
- b. This policy shall cease to attach:-
 - i) If the premises shall have been left uninhabited by day and night for seven or more consecutive days and nights or while the premises are left uninhabited.
 - ii) If the Insured shall cause or suffer any material alteration to be made in the premises or anything to be done whereby the risk is increased.
 - iii) If any property insured which shall be removed from the premises in which it is herein stated to be safe so far as is expressly provided for in this policy or this endorsement.
 - iv) If any property the interest of the Insured in which shall pass from the insured otherwise than by will or operation of law.

Unless in every case the consent of the Company to the continuance of the insurance thereon is obtaining and signified by a Memorandum made on the Policy by or on behalf of the Company.

- c. On the happening of any loss or damage the Insured shall forthwith give notice thereof in writing giving details of the Policy and also the issuing office of the Company detailing the circumstances of the case and shall within seven days after such loss or damage shall have come to the Insured's knowledge and at the Insured's own expense deliver to the Company a claim in writing and containing as particular an account as may be reasonably practicable of all the property lost or damaged and of the amount of the loss and damage in respect thereof respectively having regard to its value at the time of the loss or damage and also to the damage (if any) to the Premises. The Insured shall also produce and give to the Company when, where and to whom and in a manner required by the Company and at the Insured's own expenses all such books of account, vouchers, invoices, documents proofs and information as may be reasonably required and the Insured shall be bound to satisfy the company by such reasonable evidence as the company may require that the loss or damage claimed for has actually arisen from one of the causes insured against and that the property in respect of which a claim made is not merely mislaid or missing.
- d. The insured upon becoming aware of any loss or damage in respect of which a claim is or may be made shall take all practicable steps to discover the person by whom the property was stolen or the premises damaged and to prosecute and obtain the conviction of such person for the offence and to trace and recover any property stolen.

10. Claim cannot be rejected for want of documents.

11. Claim Survey & final decision: Turn around time

Surveyor appointment – 24hours
Survey Report submission – 15 days
Final decision – 07days

12. Claim Repudiation – breach of condition / warranty -Delay on part of policyholder:-
Repudiation not allowed:-
- If breach not relevant to circumstances of loss.
 - If delay has not resulted in increase of loss.
13. Contribution clause - Multiple Policies involving Bank / Lender
Contribution not applicable if insured has more than one policy covering the same risk, in policies involving Bank / Lender
14. Underinsurance clause:
Underinsurance to be considered after considering combined SI under all the policies if insured has more than one policy covering the same risk, in policies involving Bank / Lender
15. Refund of Premium: Refund only to the Bank Account through electronic transfer only.
16. Nomination: Nomination facility at the time of new policy and also at the time of renewal to be given.
17. **GRIEVANCE REDRESSAL:** When the Company repudiates a claim if not payable under the policy, the Company shall communicate the reasons for repudiation in writing to the Insured. In case of any grievance related to the policy or a claim thereunder, the Insured shall have the right to appeal / approach the Customer Service Department of the Company at its policy issuing office, concerned Divisional Office, concerned Regional Office or of the Corporate Office, situated at Block IV, Plate A, NBCC office complex, East Kidwai Nagar, New Delhi-110023. E-mail id is csd@orientalinsurance.co.in.

MORTGAGE CLAUSE

It is hereby declared and agreed.

1. that upon any moneys becoming payable under this policy the same shall be paid by the company to the bank and such part of any moneys so paid as may relate to the interest of other parties insured hereunder shall be received by the bank as agents for such other parties.
2. that the receipts of the bank shall be complete discharge of the company and therefore shall be binding on all parties insured hereunder.
3. that if and whenever any notice shall 'be required to be given or other communication shall be required to be made by the company to the insured or any of them in any matter arising under or in connection with this policy such notice or other communication shall be deemed to have, been sufficiently given or made if given or made to the bank.
4. that any adjustment, settlement, compromise or reference to arbitration in connection with any dispute between the company and the insured or any of them arising under or in connection with this policy, if made by the bank shall be valid and binding on all parties insured hereunder but not so as to impair the right of the bank to recover the full amount of any claim it may have on other parties insured hereunder.

List of Offices of Insurance Ombudsman

Areas of Jurisdiction	Insurance Ombudsman, Office of the Insurance Ombudsman
Gujarat , UT of Dadra and Nagar Haveli, Daman and Diu	Office of the Insurance Ombudsman, 2nd floor, Ambica House, Near C.U. Shah College,5, Navyug Colony, Ashram Road, Ahmedabad – 380014. Tel.: 079 - 27546150 / 27546139 Fax: 079 - 27546142 Email: bimalokpal.ahmedabad@ecoi.co.in
Karnataka	Office of the Insurance Ombudsman, JeevanSoudhaBuilding,PID No. 57-27-N-19 Ground Floor, 19/19, 24th Main Road, JP Nagar, 1st Phase, Bengaluru – 560 078. Tel.: 080 - 26652048 / 26652049 Email: bimalokpal.bengaluru@gbic.co.in
Madhya Pradesh and Chhattisgarh	Office of the Insurance Ombudsman, JanakVihar Complex, 2nd Floor, 6, Malviya Nagar, Opp. Airtel Office, Near New Market, Bhopal – 462 003. Tel.: 0755 - 2769201 / 2769202 Fax: 0755 - 2769203 Email: bimalokpal.bhopal@gbic.co.in
Orissa	Office of the Insurance Ombudsman, 62, Forest park, Orissa Bhubneshwar – 751 009. Tel.: 0674 - 2596461 /2596455 Fax: 0674 - 2596429 Email: bimalokpal.bhubaneswar@gbic.co.in
Punjab , Haryana, Himachal Pradesh, Jammu and Kashmir , UT of Chandigarh	Office of the Insurance Ombudsman, S.C.O. No. 101, 102 & 103, 2nd Floor, Batra Building, Sector 17 – D, Chandigarh – 160 017. Tel.: 0172 - 2706196 / 2706468 Fax: 0172 - 2708274 Email: bimalokpal.chandigarh@gbic.co.in
Tamil Nadu, UT–Pondicherry Town and Karaikal (which are part of UT of Pondicherry)	Office of the Insurance Ombudsman, Fatima Akhtar Court, 4th Floor, 453, Anna Salai, Teynampet, CHENNAI – 600 018. Tel.: 044 - 24333668 / 24335284 Fax: 044 - 24333664 Email: bimalokpal.chennai@gbic.co.in

Delhi	Office of the Insurance Ombudsman, 2/2 A, Universal Insurance Building, Asaf Ali Road, New Delhi – 110 002. Tel.: 011 - 23239633 / 23237532 Fax: 011 - 23230858 Email: bimalokpal.delhi@gbic.co.in
Assam , Meghalaya, Manipur, Mizoram, Arunachal Pradesh, Nagaland and Tripura	Office of the Insurance Ombudsman, JeevanNivesh, 5th Floor, Nr. Panbazar over bridge, S.S. Road, Guwahati – 781001(ASSAM). Tel.: 0361 - 2132204 / 2132205 Fax: 0361 - 2732937 Email: bimalokpal.guwahati@gbic.co.in
Andhra Pradesh, Karnataka and UT of Yanam – a part of the UT of Pondicherry	Office of the Insurance Ombudsman, 6-2-46, 1st floor, "Moin Court", Lane Opp. Saleem Function Palace, A. C. Guards, Lakdi-Ka-Pool, Hyderabad - 500 004. Tel.: 040 - 65504123 / 23312122 Fax: 040 - 23376599 Email: bimalokpal.hyderabad@gbic.co.in
Rajasthan	Office of the Insurance Ombudsman, JeevanNidhi – II Bldg., Gr. Floor, Bhawani Singh Marg, Jaipur - 302 005. Tel.: 0141 - 2740363 Email: Bimalokpal.jaipur@gbic.co.in
Kerala , UT of (a) Lakshadweep, (b) Mahe – a part of UT of Pondicherry	Office of the Insurance Ombudsman, 2nd Floor, Pulinat Bldg., Opp. Cochin Shipyard, M. G. Road, Ernakulam - 682 015. Tel.: 0484 - 2358759 / 2359338 Fax: 0484 - 2359336 Email: bimalokpal.ernakulam@gbic.co.in
West Bengal, UT of Andaman and Nicobar Islands, Sikkim	Office of the Insurance Ombudsman, Hindustan Bldg. Annexe, 4th Floor, 4, C.R. Avenue, KOLKATA - 700 072. Tel.: 033 - 22124339 / 22124340 Fax : 033 - 22124341 Email: bimalokpal.kolkata@gbic.co.in

Districts of Uttar Pradesh :Laitpur, Jhansi, Mahoba, Hamirpur, Banda, Chitrakoot, Allahabad, Mirzapur, Sonbhabdra, Fatehpur, Pratapgarh, Jaunpur, Varanasi, Gazipur, Jalaun, Kanpur, Lucknow, Unnao, Sitapur, Lakhimpur, Bahraich, Barabanki, Raebareli, Sravasti, Gonda, Faizabad, Amethi, Kaushambi, Balrampur, Basti, Ambedkarnagar, Sultanpur, Maharajgang, Santkabirnagar, Azamgarh, Kushinagar, Tel.: 0522 - 2231330 / 2231331 Gorkhpur, Deoria, Mau, Ghazipur, Chandauli, Ballia, Sidharathnagar.	Office of the Insurance Ombudsman, 6th Floor, JeevanBhawan, Phase-II, Nawal Kishore Road, Hazratganj, Lucknow - 226 001. Tel.: 0522 - 2231330 / 2231331 Fax: 0522 - 2231310 Email: bimalokpal.lucknow@gbic.co.in
Goa, Mumbai Metropolitan Region excluding Navi Mumbai & Thane	Office of the Insurance Ombudsman, 3rd Floor, JeevanSevaAnnexe, S. V. Road, Santacruz (W), Mumbai - 400 054. Tel.: 022 - 26106552 / 26106960 Fax: 022 - 26106052 Email: bimalokpal.mumbai@gbic.co.in